

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents and Third-Party Complainants,

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,

Third-Party Respondent.

**THIRD-PARTY RESPONDENT'S MOTION TO DISMISS RESPONDENTS'
THIRD-PARTY COMPLAINT**

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THIRD-PARTY RESPONDENT'S MOTION TO DISMISS RESPONDENTS'
THIRD-PARTY COMPLAINT

Third-Party Respondent Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd. ("Third-Party Respondent" or "SEC"), having specially appeared by its undersigned attorneys for the limited purpose of filing this motion, respectfully submits this Motion to Dismiss the Third-Party Complaint of Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, "OOCL" or "Respondents") based on the insufficiency of the service of process.

INTRODUCTION

Respondents, in an attempt to deflect focus on their demurrage and detention practices during the Covid-19 pandemic, have improperly sought to bring SEC into this FMC proceeding which was initiated by its subsidiary, Samsung Electronics America, Inc. ("SEA").¹ SEC is not a regulated entity before the FMC, has no business before FMC, has not sought relief here, and should be dismissed swiftly on the ground of the insufficiency of the service of process.

As an initial matter, SEC notes that while the initiation of the service of process of the Third-Party Complaint appears to have been made in accordance with FMC procedures, the attempted service of process was not and will not be effective and, more importantly, those procedures do not meet the requirements of U.S. law and on that basis, the Third-Party Complaint must be dismissed.

The Third-Party Complaint was received by the FMC Secretary on December 12, 2024 and allegedly "served" by the Secretary on December 17, 2024. (Doc. No. 20, stamps affixed on first page). For the purposes of this motion, service by the Secretary appears to have been attempted

¹ Before the filing of the Third-Party Complaint, SEC was not involved in this proceeding as this matter was initiated by SEA. The procedural history of this matter is set out in SEA's Motion to Dismiss Respondents' Counterclaim. (Doc. No. 24 at 1-2).

in accordance with Rule 113, 46 C.F.R. § 502.113(b): “The Secretary will serve the complaint using first class mail or express mail service at the Respondent’s address provided by the Complainant.” While this rule may well be suitable for service on regulated entities before the FMC, it is wholly insufficient for a non-regulated foreign entity such as SEC.

Although process initiated by the Secretary had not been received by SEC in the Republic of Korea (“Korea”), since the notational time for submission of SEC’s initial responsive pleadings was January 13, 2025, as precautionary matter, SEC made a limited and special appearance in this case on January 9, 2025. (Doc. No. 25). Again, as a protective matter, on that same day, SEC filed its Motion for Enlargement of Time to File an Answer or to Otherwise Move. (Doc. No. 26). The Administrative Law Judge granted the motion on January 13, 2025, and SEC’s time to answer or otherwise move was extended to January 29, 2025. (Doc. No. 27).

On January 17, 2025, the Secretary transmitted a letter to OOCL’s counsel advising that the Third-Party Complaint which the Secretary had transmitted to SEC at the address provided by OOCL had been returned to the Secretary as undeliverable or not accepted for delivery on January 14, 2025. (Doc. No. 28). In response to the Secretary’s letter, on January 27, 2025, OOCL sent an email to the Secretary in which a different address in Korea for SEC was provided and requesting that the Secretary make service on SEC. On January 29, 2025, the Secretary transmitted a letter stating that service had been made on SEC at the address provided by OOCL as well as upon SEC’s counsel of record via email. (Doc. No. 31). As will be discussed in detail below, this second purported service also does not comply with the requirements of proper service of process and, moreover, as SEC’s counsel specially appeared in order to contest the service of process (Doc. No. 25), it is respectfully submitted that email service on counsel is not effective.

While SEC should not be compelled to submit any responsive pleading until service has been properly made, given SEC's limited and special appearance in this matter and for reasons of judicial efficiency, SEC respectfully submits that this motion to dismiss raises an important issue that should be considered by the FMC; specifically, the application of relevant U.S. and treaty law concerning the service of process of a third-party complaint in FMC proceedings on non-regulated foreign entities, such as SEC.

LEGAL STANDARD

Although the Commission's Rules of Practice and Procedure ("Rules") do not explicitly provide for Motions to Dismiss, Rule 12 of the Commission's Rules states that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission's Rules to the extent that the application of the Federal Rules is consistent with sound administrative practice. 46 C.F.R. § 502.12.

SEC's motion to dismiss based on the insufficiency of the service of process (Fed. R. Civ. P. 12(b)(5)) conforms with this precept.

ARGUMENT: SERVICE OF PROCESS WAS AND IS INSUFFICIENT

The attempted services of process of the Third-Party Complaint did not and does not comply with mandatory U.S. law concerning the service of process on parties resident in foreign jurisdictions, including the Korea, and thus the Third-Party Complaint must be dismissed.

As alleged by OOCL and not disputed by Third-Party Respondent, SEC is a corporation organized and existing under the laws of Korea with its principal place of business in Korea. (Doc. No. 20, ¶ 10). Given that SEC is domiciled in Korea, the terms of the Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters, November 15,

1965, 20 U.S.T. 361, T.I.A.S. No. 6638 (the “Hague Convention”) must be considered. The Articles of the Hague Convention are attached at Appendix A.²

Article 1 of the Hague Convention states: “The present Convention shall apply in all cases, in civil or commercial matters where there is occasion to transmit a judicial or extrajudicial document for service abroad.” As held by the U.S. Supreme Court, the language of Article 1 is “mandatory”. *Volkswagenwerk Aktiengesellschaft v. Schlunk*, 486 U.S. 694, 699 (1988)(citing *Société Nationale Industrielle Aérospatiale v. United States District Court for the Southern District of Iowa*, 482 U.S. 522, 534 n. 15 (1987)). See also Fed. R. Civ. P. 4(f)(1) Advisory Committee’s Notes (1993 Amendments): “[The Hague] Convention is an important means of dealing with problems of service in a foreign country... Use of the [Hague] Convention procedures, when available is mandatory if documents must be transmitted abroad to effect service... Therefore, [Fed. R. Civ. P. 4(f)(1)] provides that, when service is to be effected outside a judicial district of the United States, the methods of service appropriate under an applicable treaty shall be employed if available and if the treaty so requires.” (citations omitted).

Both the United States and Korea are signatories to the Hague Convention. *Touchpoint Projection Innovations LLC v. CDNetworks Co., Ltd.*, Civ. Action No. 2:23-CV-00233-JRG, 2024 WL 4028034, *3 (E.D. Tex. Aug. 30, 2024); *American River Transp. Co. v. M/V Bow Lion*, No. Civ.A 03-1306, 03-1594, 03-1797, 03-1864, 03-2003, 2004 WL 764181, *3 (E.D. La. Apr. 7, 2004). Thus, the terms of the Hague Convention mandatorily apply to service of process on SEC in this matter.

The Supreme Court has reprised the basic functioning of the Hague Convention:

The primary innovation of the Convention is that it requires each state to establish a central authority to receive requests for service of documents from other

² The Articles of the Hague Convention may be found at <https://www.hcch.net/en/instruments/conventions/full-text/?cid=17> (last accessed on January 11, 2025).

countries...Art. 2. Once a central authority receives a request in the proper form it must serve the documents by a method prescribed by the internal law of the receiving state or by a method designated by the requester and compatible with that law. Art. 5. The central authority must then provide a certificate of service that conforms to a specified model. Art. 6. A state also may consent to methods of service within its boundaries other than a request to its central authority. Arts. 8-11, 19.

Schlunk, 486 U.S. at 698-99 (citation omitted). The receiving state also has the option to require that the document be translated into the official language of that receiving state. Hague Convention, Article 5.

As stated in *Schlunk*, parties to the Hague Convention have the option to consent to other methods of service, including service by postal channels. Hague Convention, Article 10. Conversely, a state may affirmatively object to such service as Korea has done. Attached as Appendix B is the official Declaration/Reservation/Notification of Korea in which Korea objects to service of documents by postal channels directly to persons within its territory.³ Attached as Appendix C is an information sheet promulgated by the Korean government which outlines the details of proper service in Korea.⁴ It confirms that direct service by postal means is not acceptable and notes that the documents must be provided to the Korean Central Authority for service and should include a translation of such documents into Korean. The lack of a translation attached to OOCL's Third-Party Complaint or appearing elsewhere in FMC Docket 24-17, indicates that such a translation was not included in the Commission's mailing.

³ This document may be found at <https://www.hcch.net/en/instruments/conventions/status-table/notifications/?csid+408&disp=resdn> (last accessed January 11, 2025).

⁴ This document may be found at <https://www.hcch.net/index.cfm?oldlang=en&act=authorities.details&aid=262> (last accessed January 11, 2025). Links to the Appendices may also be accessed through the U.S. Department of State website: <https://travel.state.gov/content/travel/en/legal/Judicial-Assistance-Country-Information/KoreaRepublicof.html> (last accessed January 11, 2025).

The U.S. Supreme Court addressed the issue of the service of process by postal means in *Water Splash, Inc. v. Menon*, 581 U.S. 271 (2017). In *Water Splash*, the plaintiff sought to make service of process on a party in Canada by mail. *Id.* at 274. The Court noted that Canada had not objected to Article 10's service by mail provisions. *Id.* at 282-83 n. 7. In finding that the service of process by mail was permissible, the Court held: "[I]n cases governed by the Hague Service Convention, service by mail is permissible if two conditions are met: first, the receiving state has not objected to service by mail; and second, service by mail is authorized under otherwise-applicable law." *Id.* at 284 (citation omitted).

Water Splash was addressed within the FMC in *In re: Vehicle Carrier Services*, FMC Dkt. Nos. 16-01, 16-07, 16-10, 16-11, and 17-09, 2018 WL 2214682, 1 F.M.C.2d 45 (FMC May 7, 2018). In that matter, the respondents had raised the issue of whether service of process in accordance with the FMC Rule was proper under the Hague Convention, however, at the time of the filing of the motion, *Water Splash* was *sub judice* before the Supreme Court. By the time of the FMC ruling cited here, *Water Splash* had been decided. The Presiding Officer noted that decision and the fact that the parties had not briefed the service of process issue in light of *Water Splash*, thus the motion to dismiss based on the insufficiency of the service of process was denied without prejudice. 2018 WL 2214682 at *97, 1 F.M.C.2d at 51-52. As such, *Vehicle Carrier Services* does not illuminate the issue presented by SEC's motion, other than to note the Presiding Officer was certainly mindful of the necessity of following the Hague Convention as far as service of FMC complaints.⁵

⁵ The Commission is certainly aware of the provisions of the Hague Convention. For example, in the context of a discovery dispute, the FMC has confirmed that it is willing to comply with relevant Hague Convention requirements "where appropriate." *MCS Industries, Inc., v. Cosco Shipping Lines Co., Ltd. and MSC Mediterranean Shipping Company SA*, Dkt. 21-05, 2023 WL 9604492 at *19 (ALJ, Jan. 13, 2023). Moreover, OOCL is likely familiar with the requirements of the Hague Convention as it recently dealt with compelling the deposition of a foreign non-party in Hong Kong. Specifically, OOCL requested

That said, the issue has been addressed by the U.S District Courts. For example, in *Ghazarian v. Republic of Turkey*, Case No. CV 19-4664-PSG (Ex), 2020 WL 3643483 (C.D. Cal. Mar. 30, 2020), the plaintiffs attempted to serve the government of Turkey by mail. Noting that Turkey objected to this manner of service, the Court denied a request for the entry of a default judgment since “Plaintiffs cannot meet the first prong of the *Water Splash* test.” *Id.* at *2 (citation omitted).

Turning to Korea, the precedent is consistent: service on a party in Korea must be done in accordance with the Hague Convention, i.e., direct service by mail is impermissible. *See Touchpoint*, 2024 WL 40228034 at * 4 (“[T]o properly serve a nonresident defendant in South Korea through the Hague Convention service must be through the Central Authority in South Korea as set forth in the Hague Convention.”); *Sharp v. Shinhan Bank Co., Ltd.*, CV 21-9197 DSF (MRWx), 2022 WL 22339345, * 3 (C.D. Cal. Apr. 1, 2022)(“To properly effect service in the Republic of Korea under the Hague Convention, a plaintiff must serve a translated version of the Complaint through South Korea’s designated Central Authority.”)(citation omitted).

Failure to follow the proper procedure supports the dismissal of the action under Fed. R. Civ. P. 12(b)(5). *See Castillo v. Hongjin Crown Corp.*, Civil Action No. DR-08-CV-00031-AML-VRG, 2008 WL 11334092, * 2-3 (W.D. Tex. Oct. 27, 2008)(Garcia, Mag. J.), *report and recommendation adopted and dismissal granted*, 2009 WL 1069624, *2 (W.D. Tex. Sep. 16, 2009)(where plaintiffs failed to send the summons and complaint through Korea’s Central Authority for service, granting the motion to dismiss under Fed. R. Civ. P. 12(b)(5) was proper); *American River*, 2004 WL 764181 at * 1 – 4 (where service of third-party complaint was made by

that the Presiding Officer issue a Notice of Request to Depose a witness, which was not opposed and which the ALJ subsequently granted. *20230930-DK-Butterfly-1, Inc. F/k/a/ Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Dkt. 23-02, 2024 WL 4732735 (ALJ, Nov. 5, 2024).

mailing an untranslated third-party complaint by mail to a party in Korea, the failure to follow the proper Hague Convention procedures resulted in the dismissal of the case pursuant to Fed. R. Civ. P. 12(b)(5)).

In sum, the terms of the Hague Convention are mandatory and have not been followed in this matter. While service by the Commission Secretary was and has been initiated in accordance with Rule 113 using first class mail or express mail service to the Respondent's addresses provided by OOCL, the Third-Party Complaint was not sent to the Central Authority designated by Korea. Further, no translation of the Third-Party Complaint is alleged to have been included with the mailed Third-Party Complaint, and no such translation has been included in the Docket. These deviations from the prescribed manner of service under the Hague Convention, to a party with an address in Korea, establish that service of process on SEC was not and cannot be either effective or proper.

CONCLUSION

Given the failure to serve process in accordance with the Hague Convention, the Third-Party Complaint should be dismissed.

Accordingly, pursuant to Fed. R. Civ. P. 12(b)(5), 46 C.F.R. §§ 502.69, 502.70, and 502.254, Third-Party Respondent SEC respectfully moves for an Order:

1. Dismissing with prejudice OOCL's Third-Party Complaint in its entirety;
2. Granting SEC its attorneys' fees and costs in connection with this Motion to Dismiss;
and,
3. Granting SEC all such other and further relief as may be just and proper.

Dated: January 29, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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SEC's Motion to Dismiss

Docket No. 24-17

Appendix A

**14. CONVENTION ON THE SERVICE ABROAD OF
JUDICIAL AND EXTRAJUDICIAL DOCUMENTS
IN CIVIL OR COMMERCIAL MATTERS¹**

(Concluded 15 November 1965)

The States signatory to the present Convention,
Desiring to create appropriate means to ensure that judicial and extrajudicial documents to be served abroad shall be brought to the notice of the addressee in sufficient time,
Desiring to improve the organisation of mutual judicial assistance for that purpose by simplifying and expediting the procedure,
Have resolved to conclude a Convention to this effect and have agreed upon the following provisions:

Article 1

The present Convention shall apply in all cases, in civil or commercial matters, where there is occasion to transmit a judicial or extrajudicial document for service abroad.
This Convention shall not apply where the address of the person to be served with the document is not known.

CHAPTER I – JUDICIAL DOCUMENTS

Article 2

Each Contracting State shall designate a Central Authority which will undertake to receive requests for service coming from other Contracting States and to proceed in conformity with the provisions of Articles 3 to 6.

Each State shall organise the Central Authority in conformity with its own law.

Article 3

The authority or judicial officer competent under the law of the State in which the documents originate shall forward to the Central Authority of the State addressed a request conforming to the model annexed to the present Convention, without any requirement of legalisation or other equivalent formality.
The document to be served or a copy thereof shall be annexed to the request. The request and the document shall both be furnished in duplicate.

Article 4

If the Central Authority considers that the request does not comply with the provisions of the present Convention it shall promptly inform the applicant and specify its objections to the request.

¹ This Convention, including related materials, is accessible on the website of the Hague Conference on Private International Law (www.hcch.net), under "Conventions" or under the "Service Section". For the full history of the Convention, see Hague Conference on Private International Law, *Actes et documents de la Dixième session* (1964), Tome III, *Notification* (391 pp.).

Article 5

The Central Authority of the State addressed shall itself serve the document or shall arrange to have it served by an appropriate agency, either –

- a) by a method prescribed by its internal law for the service of documents in domestic actions upon persons who are within its territory, or
- b) by a particular method requested by the applicant, unless such a method is incompatible with the law of the State addressed.

Subject to sub-paragraph (b) of the first paragraph of this Article, the document may always be served by delivery to an addressee who accepts it voluntarily.

If the document is to be served under the first paragraph above, the Central Authority may require the document to be written in, or translated into, the official language or one of the official languages of the State addressed.

That part of the request, in the form attached to the present Convention, which contains a summary of the document to be served, shall be served with the document.

Article 6

The Central Authority of the State addressed or any authority which it may have designated for that purpose, shall complete a certificate in the form of the model annexed to the present Convention.

The certificate shall state that the document has been served and shall include the method, the place and the date of service and the person to whom the document was delivered. If the document has not been served, the certificate shall set out the reasons which have prevented service.

The applicant may require that a certificate not completed by a Central Authority or by a judicial authority shall be countersigned by one of these authorities.

The certificate shall be forwarded directly to the applicant.

Article 7

The standard terms in the model annexed to the present Convention shall in all cases be written either in French or in English. They may also be written in the official language, or in one of the official languages, of the State in which the documents originate.

The corresponding blanks shall be completed either in the language of the State addressed or in French or in English.

Article 8

Each Contracting State shall be free to effect service of judicial documents upon persons abroad, without application of any compulsion, directly through its diplomatic or consular agents.

Any State may declare that it is opposed to such service within its territory, unless the document is to be served upon a national of the State in which the documents originate.

Article 9

Each Contracting State shall be free, in addition, to use consular channels to forward documents, for the purpose of service, to those authorities of another Contracting State which are designated by the latter for this purpose.

Each Contracting State may, if exceptional circumstances so require, use diplomatic channels for the same purpose.

Article 10

Provided the State of destination does not object, the present Convention shall not interfere with –

- a) the freedom to send judicial documents, by postal channels, directly to persons abroad,

- b) the freedom of judicial officers, officials or other competent persons of the State of origin to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination,
- c) the freedom of any person interested in a judicial proceeding to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination.

Article 11

The present Convention shall not prevent two or more Contracting States from agreeing to permit, for the purpose of service of judicial documents, channels of transmission other than those provided for in the preceding Articles and, in particular, direct communication between their respective authorities.

Article 12

The service of judicial documents coming from a Contracting State shall not give rise to any payment or reimbursement of taxes or costs for the services rendered by the State addressed.

The applicant shall pay or reimburse the costs occasioned by —

- a) the employment of a judicial officer or of a person competent under the law of the State of destination,
- b) the use of a particular method of service.

Article 13

Where a request for service complies with the terms of the present Convention, the State addressed may refuse to comply therewith only if it deems that compliance would infringe its sovereignty or security. It may not refuse to comply solely on the ground that, under its internal law, it claims exclusive jurisdiction over the subject-matter of the action or that its internal law would not permit the action upon which the application is based.

The Central Authority shall, in case of refusal, promptly inform the applicant and state the reasons for the refusal.

Article 14

Difficulties which may arise in connection with the transmission of judicial documents for service shall be settled through diplomatic channels.

Article 15

Where a writ of summons or an equivalent document had to be transmitted abroad for the purpose of service, under the provisions of the present Convention, and the defendant has not appeared, judgment shall not be given until it is established that —

- a) the document was served by a method prescribed by the internal law of the State addressed for the service of documents in domestic actions upon persons who are within its territory, or
- b) the document was actually delivered to the defendant or to his residence by another method provided for by this Convention, and that in either of these cases the service or the delivery was effected in sufficient time to enable the defendant to defend.

Each Contracting State shall be free to declare that the judge, notwithstanding the provisions of the first paragraph of this Article, may give judgment even if no certificate of service or delivery has been received, if all the following conditions are fulfilled —

- a) the document was transmitted by one of the methods provided for in this Convention,
- b) a period of time of not less than six months, considered adequate by the judge in the particular case, has elapsed since the date of the transmission of the document,
- c) no certificate of any kind has been received, even though every reasonable effort has been made to obtain it through the competent authorities of the State addressed.

Notwithstanding the provisions of the preceding paragraphs the judge may order, in case of urgency, any provisional or protective measures.

Article 16

When a writ of summons or an equivalent document had to be transmitted abroad for the purpose of service, under the provisions of the present Convention, and a judgment has been entered against a defendant who has not appeared, the judge shall have the power to relieve the defendant from the effects of the expiration of the time for appeal from the judgment if the following conditions are fulfilled –

- a) the defendant, without any fault on his part, did not have knowledge of the document in sufficient time to defend, or knowledge of the judgment in sufficient time to appeal, and
- b) the defendant has disclosed a *prima facie* defence to the action on the merits.

An application for relief may be filed only within a reasonable time after the defendant has knowledge of the judgment.

Each Contracting State may declare that the application will not be entertained if it is filed after the expiration of a time to be stated in the declaration, but which shall in no case be less than one year following the date of the judgment.

This Article shall not apply to judgments concerning status or capacity of persons.

CHAPTER II – EXTRAJUDICIAL DOCUMENTS

Article 17

Extrajudicial documents emanating from authorities and judicial officers of a Contracting State may be transmitted for the purpose of service in another Contracting State by the methods and under the provisions of the present Convention.

CHAPTER III – GENERAL CLAUSES

Article 18

Each Contracting State may designate other authorities in addition to the Central Authority and shall determine the extent of their competence.

The applicant shall, however, in all cases, have the right to address a request directly to the Central Authority.

Federal States shall be free to designate more than one Central Authority.

Article 19

To the extent that the internal law of a Contracting State permits methods of transmission, other than those provided for in the preceding Articles, of documents coming from abroad, for service within its territory, the present Convention shall not affect such provisions.

Article 20

The present Convention shall not prevent an agreement between any two or more Contracting States to dispense with –

- a) the necessity for duplicate copies of transmitted documents as required by the second paragraph of Article 3,
- b) the language requirements of the third paragraph of Article 5 and Article 7,
- c) the provisions of the fourth paragraph of Article 5,
- d) the provisions of the second paragraph of Article 12.

Article 21

Each Contracting State shall, at the time of the deposit of its instrument of ratification or accession, or at a later date, inform the Ministry of Foreign Affairs of the Netherlands of the following –

- a) the designation of authorities, pursuant to Articles 2 and 18,
- b) the designation of the authority competent to complete the certificate pursuant to Article 6,
- c) the designation of the authority competent to receive documents transmitted by consular channels, pursuant to Article 9.

Each Contracting State shall similarly inform the Ministry, where appropriate, of –

- a) opposition to the use of methods of transmission pursuant to Articles 8 and 10,
- b) declarations pursuant to the second paragraph of Article 15 and the third paragraph of Article 16,
- c) all modifications of the above designations, oppositions and declarations.

Article 22

Where Parties to the present Convention are also Parties to one or both of the Conventions on civil procedure signed at The Hague on 17th July 1905, and on 1st March 1954, this Convention shall replace as between them Articles 1 to 7 of the earlier Conventions.

Article 23

The present Convention shall not affect the application of Article 23 of the Convention on civil procedure signed at The Hague on 17th July 1905, or of Article 24 of the Convention on civil procedure signed at The Hague on 1st March 1954.

These Articles shall, however, apply only if methods of communication, identical to those provided for in these Conventions, are used.

Article 24

Supplementary agreements between Parties to the Conventions of 1905 and 1954 shall be considered as equally applicable to the present Convention, unless the Parties have otherwise agreed.

Article 25

Without prejudice to the provisions of Articles 22 and 24, the present Convention shall not derogate from Conventions containing provisions on the matters governed by this Convention to which the Contracting States are, or shall become, Parties.

Article 26

The present Convention shall be open for signature by the States represented at the Tenth Session of the Hague Conference on Private International Law. It shall be ratified, and the instruments of ratification shall be deposited with the Ministry of Foreign Affairs of the Netherlands.

Article 27

The present Convention shall enter into force on the sixtieth day after the deposit of the third instrument of ratification referred to in the second paragraph of Article 26.
The Convention shall enter into force for each signatory State which ratifies subsequently on the sixtieth day after the deposit of its instrument of ratification.

Article 28

Any State not represented at the Tenth Session of the Hague Conference on Private International Law may accede to the present Convention after it has entered into force in accordance with the first paragraph of Article 27. The instrument of accession shall be deposited with the Ministry of Foreign Affairs of the Netherlands.

The Convention shall enter into force for such a State in the absence of any objection from a State, which has ratified the Convention before such deposit, notified to the Ministry of Foreign Affairs of the Netherlands within a period of six months after the date on which the said Ministry has notified it of such accession.

In the absence of any such objection, the Convention shall enter into force for the acceding State on the first day of the month following the expiration of the last of the periods referred to in the preceding paragraph.

Article 29

Any State may, at the time of signature, ratification or accession, declare that the present Convention shall extend to all the territories for the international relations of which it is responsible, or to one or more of them. Such a declaration shall take effect on the date of entry into force of the Convention for the State concerned.

At any time thereafter, such extensions shall be notified to the Ministry of Foreign Affairs of the Netherlands.

The Convention shall enter into force for the territories mentioned in such an extension on the sixtieth day after the notification referred to in the preceding paragraph.

Article 30

The present Convention shall remain in force for five years from the date of its entry into force in accordance with the first paragraph of Article 27, even for States which have ratified it or acceded to it subsequently.

If there has been no denunciation, it shall be renewed tacitly every five years.

Any denunciation shall be notified to the Ministry of Foreign Affairs of the Netherlands at least six months before the end of the five year period.

It may be limited to certain of the territories to which the Convention applies.

The denunciation shall have effect only as regards the State which has notified it. The Convention shall remain in force for the other Contracting States.

Article 31

The Ministry of Foreign Affairs of the Netherlands shall give notice to the States referred to in Article 26, and to the States which have acceded in accordance with Article 28, of the following –

- a) the signatures and ratifications referred to in Article 26;
- b) the date on which the present Convention enters into force in accordance with the first paragraph of Article 27;
- c) the accessions referred to in Article 28 and the dates on which they take effect;
- d) the extensions referred to in Article 29 and the dates on which they take effect;
- e) the designations, oppositions and declarations referred to in Article 21;
- f) the denunciations referred to in the third paragraph of Article 30.

In witness whereof the undersigned, being duly authorised thereto, have signed the present Convention.

Done at The Hague, on the 15th day of November, 1965, in the English and French languages, both texts being equally authentic, in a single copy which shall be deposited in the archives of the Government of the Netherlands, and of which a certified copy shall be sent, through the diplomatic channel, to each of the States represented at the Tenth Session of the Hague Conference on Private International Law.

SEC's Motion to Dismiss

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Appendix B

DECLARATION/RESERVATION/NOTIFICATION

Declarations

Reservations

Articles: 8,10,15

(Click here for the Central Authority designated by the Republic of Korea and other practical information)

Text of the declarations:

1. Pursuant to Article 8, the Republic of Korea objects to service of judicial documents directly through diplomatic or consular agents upon persons in its territory, unless the document is to be served upon a national of the State in which the documents originate.
 2. Pursuant to Article 10, the Republic of Korea objects to the following:
 - a) the freedom to send judicial documents, by postal channels, directly to persons abroad,
 - b) the freedom of judicial officers, officials or other competent persons of the State of origin to effect service of judicial documents directly through the judicial officials or other competent persons of the State of destination.
 - c) the freedom of any person interested in a judicial proceeding to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination.
 3. Pursuant to Article 15, paragraph 2, the judge of the Republic of Korea may give judgment even if no certificate of service or delivery has been received if all the following conditions are fulfilled:
 - a) the document was transmitted by one of the methods provided for in this Convention,
 - b) a period of time of not less than six months, considered adequate by the judge in the particular case, has elapsed since the date of the transmission of the document,
 - c) no certificate of any kind has been received, even though every reasonable effort has been made to obtain it through the competent authorities of the State addressed.
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Appendix C

Republic of Korea - Central Authority & practical information

Central Authority:

*Director of International Affairs
National Court Administration
Supreme Court of Korea*

Contact details:

Address:	National Court Administration Attn.: Director of International Affairs Seocho-daero 219 Seocho-gu SEOUL 06590 Republic of Korea
Telephone:	+82 (2) 3480 1734
Fax:	+82 (2) 533 2824
E-mail:	international@scourt.go.kr
General website:	https://eng.scourt.go.kr/eng/main/Main.work
Contact person:	Director of International Affairs
Languages spoken by staff:	Korean (by phone), English (by email/fax/in writing)

Practical Information:

Forwarding authorities (Art. 3(1)):	The court in which the proceedings were initiated.
Methods of service (Art. 5(1)(2)):	In principle, a competent court, as an appropriate agency, serves the document by registered mail (recorded delivery) or an execution officer serves the documents as prescribed by the Korean Supreme Court Regulations. Where the translated document is not attached, or the applicant requests so, the competent court may serve by informal method pursuant to Article 5(1)(b). Relevant laws: <i>Civil Procedure Act</i> (applicable with Contracting States to the Service Convention), <i>Act on International Judicial Mutual Assistance in Civil Matters</i> (applicable with non-Contracting States to the Service Convention).
Translation requirements (Art. 5(3)):	In case where the document is served under Article 5(1), translation into the official language (Korean) should be attached.

Costs relating to execution of the request for service
(Art. 12):

1. When an execution officer serves the documents pursuant to Article 5(1).
2. The use of a particular method of service, pursuant to Article 5(2).

Time for execution of request:

The following data is in accordance with the recent survey conducted by the National Court of Administration.

In 2012, the Central Authority received 604 requests for service. Of these:

- 200 were executed in less than 2 months
- 240 were executed in 2-4 months
- 99 were executed in 4-6 months
- 21 were executed in 6-12 months
- 8 were executed in more than 12 months
- 4 are currently pending

In 2014, 435 requests were received. Of these:

- 259 were executed in less than 2 months
- 73 were executed in 2-4 months
- 18 were executed in 4-6 months
- 22 executed in 6-12 months
- 0 were executed in more than 12 months
- 63 are currently pending

In 2018, 955 requests were received. Of these:

- 661 were executed in less than 3 months
- 64 were executed in 3-6 months
- 14 were executed in 6-12 months
- 6 were executed in more than 12 months
- 210 are currently pending

Judicial officers, officials or other competent persons
(Art. 10(b))

Oppositions and declarations
(Art. 21(2)):

[Click here to read all the declarations made by this State under the Service Convention.](#)

Art. 8(2):

Opposition

Art. 10(a):

Opposition

Art. 10(b):

Opposition

Art. 10(c):

Opposition

Art. 15(2):

Declaration of applicability

Art. 16(3):

No declaration

Derogatory channels (bilateral or multilateral agreements or internal law permitting other transmission channels)

(Arts. 11, 19, 24 and 25)

Disclaimer:

Information may not be complete or fully updated – please contact the relevant authorities to verify this information.

Useful links:

Competent authorities

(Arts 6, 9)

Other authorities

(Art. 18)

1. Domestic regulation

Act on International Judicial Mutual Assistance in Civil Matters (in particular Chapter 2 and 3)2. Bilateral Agreements on judicial assistance in civil and commercial matters: Australia (17 September 1999); People's Republic of China (7 July 2003); Uzbekistan (23 November 2004); Mongolia (15 October 2008).

Civil Procedure Act and Civil Procedure Rules (Part I, Chapter IV, Section 4).

Available at: <http://www.law.go.kr/main.html>

An English translation is available at: <http://elaw.klri.re.kr/>

See here.

This page was last updated on: 19 January 2022

Conventions (incl. Protocols and Principles)

Convention of 15 November 1965 on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters [14]